

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS=====X
AINSLEY JOHNSON,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER HARIS
FERATOVIC, SHIELD NO. 18161, POLICE OFFICER
MICHAEL HAWK, SHIELD NO. 1338, LIEUTENANT
JOSEPH SHERVIS, SHIELD NO. 1606, POLICE
OFFICER GOLDIN, SHIELD NO. UNKNOWN, POLICE
OFFICER WILSON, SHIELD NO. UNKNOWN,
SERGEANT LAUREN J. ODESSA, SHIELD NO.
UNKNOWN, POLICE OFFICER JOHN GERGIS,
SHIELD NO. UNKNOWN, SERGEANT ANTHONY
PONS, SHIELD NO. UNKNOWN, DETECTIVE
MICHAEL SPERA, SHIELD NO. UNKNOWN, and
CAPTAIN TERRELL ANDERSON, SHIELD NO.
UNKNOWN,

Defendants.
=====X**SUMMONS**

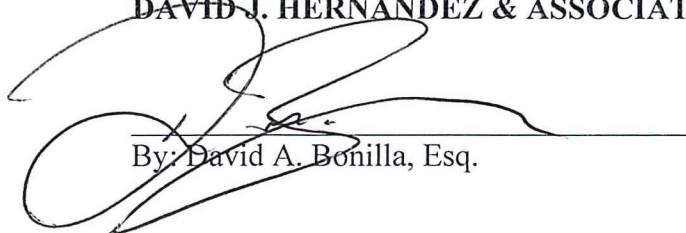
Filed On:

Index No.:

Plaintiff Designates Kings County
as the Place of TrialBasis of Venue is the County in
which the Cause of Action Arose**TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not entered with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
February 22, 2020

DAVID J. HERNANDEZ & ASSOCIATES
By: David A. Bonilla, Esq.

Attorneys for Plaintiff
AINSLEY JOHNSON
26 Court Street – Suite 2707
Brooklyn, NY 11242
T: (718) 522-0009

DEFENDANTS' ADDRESSES:**CITY OF NEW YORK**

100 Church Street
New York, New York 10007

POLICE OFFICER HARIS FERATOVIC, SHIELD NO. 18161

9720 Foster Avenue
Brooklyn, New York 11236

POLICE OFFICER MICHAEL HAWK, SHIELD NO. 1338

9720 Foster Avenue
Brooklyn, New York 11236

LIEUTENANT JOSEPH SHERVIS, SHIELD NO. 1606

9720 Foster Avenue
Brooklyn, New York 11236

POLICE OFFICER GOLDIN, SHIELD NO. UNKNOWN

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POLICE OFFICER WILSON, SHIELD NO. UNKNOWN

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SERGEANT LAUREN J. ODESSA, SHIELD NO. UNKNOWN

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POLICE OFFICER JOHN GERGIS, SHIELD NO. UNKNOWN

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SERGEANT ANTHONY PONS, SHIELD NO. UNKNOWN

9720 Foster Avenue
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DETECTIVE MICHAEL SPERA, SHIELD NO. UNKNOWN

9720 Foster Avenue

Brooklyn, New York 11236

CAPTAIN TERRELL ANDERSON, SHIELD NO. UNKNOWN

9720 Foster Avenue

Brooklyn, New York 11236

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS=====X
AINSLEY JOHNSON,

Plaintiff,

VERIFIED COMPLAINT

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER HARIS
FERATOVIC, SHIELD NO. 18161, POLICE OFFICER
MICHAEL HAWK, SHIELD NO. 1338, LIEUTENANT
JOSEPH SHERVIS, SHIELD NO. 1606, POLICE
OFFICER GOLDIN, SHIELD NO. UNKNOWN, POLICE
OFFICER WILSON, SHIELD NO. UNKNOWN,
SERGEANT LAUREN J. ODESSA, SHIELD NO.
UNKNOWN, POLICE OFFICER JOHN GERGIS,
SHIELD NO. UNKNOWN, SERGEANT ANTHONY
PONS, SHIELD NO. UNKNOWN, DETECTIVE
MICHAEL SPERA, SHIELD NO. UNKNOWN, and
CAPTAIN TERRELL ANDERSON, SHIELD NO.
UNKNOWN,

Defendants.
=====X

Plaintiff, **AINSLEY JOHNSON**, for his complaint, by his attorneys, **DAVID J.
HERNANDEZ & ASSOCIATES**, upon information and belief, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff's rights secured to him under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983; under the Civil Rights Act of 1870, *as amended*, codified as 42 U.S.C. § 1981; and under the Civil Rights Attorney's Fees Award Act of 1976, *as amended*, codified as 42 U.S.C. § 1988.
2. Plaintiff also seeks recovery pursuant to state law claims for false arrest and malicious prosecution.

3. On or about April 6, 2018, at approximately 5:45 P.M., the rights of Plaintiff Ainsley Johnson (hereinafter “Mr. Johnson”) were violated under color of state law by employees of Defendant, The City of New York (hereinafter “City”), including but not limited to the individually named Defendants herein.

4. As a result of the violation of his constitutional rights, Mr. Johnson suffered physical and mental injuries, as well as a loss of freedom. Accordingly, Mr. Johnson seeks an award of compensatory and punitive damages and attorneys’ fees.

PARTIES

5. Mr. Johnson is an African-American male and, at all times relevant hereto, resided in the County of Kings, City and State of New York.

6. Defendant City is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter “NYPD”), and as such is the public employer of the Defendant officers herein. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

7. Defendant Police Officer Haris Feratovic, Shield No. 18161 (hereinafter “Feratovic”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Feratovic is sued in his individual and official capacity.

8. Defendant Police Officer Michael Hawk, Shield No. 1338 (hereinafter “Hawk”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Hawk is sued in his individual and official capacity.

9. Defendant Lieutenant Joseph Shervis, Shield No. 1606 (hereinafter “Shervis”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Shervis is sued in his individual and official capacity.

10. Defendant Police Officer Goldin, Shield No. Unknown (hereinafter “Goldin”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Goldin is sued in his individual and official capacity.

11. Defendant Police Officer Wilson, Shield No. Unknown (hereinafter “Wilson”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Wilson is sued in his individual and official capacity.

12. Defendant Sergeant Lauren J. Odessa, Shield No. Unknown (hereinafter “Odessa”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Odessa is sued in his individual and official capacity.

13. Defendant Police Officer John Gergis, Shield No. Unknown (hereinafter “Gergis”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Gergis is sued in his individual and official capacity.

14. Defendant Sergeant Anthony Pons, Shield No. 18161 (hereinafter “Pons”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Pons is sued in his individual and

official capacity.

15. Defendant Detective Michael Spera, Shield No. Unknown (hereinafter “Spera”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Spera is sued in his individual and official capacity.

16. Defendant Captain Terrell Anderson, Shield No. 18161 (hereinafter “Anderson”), being a NYPD police officer, at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant City and within the scope of their employments. Anderson is sued in his individual and official capacity.

17. At all times relevant hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all times relevant hereto, Defendant City was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

STATUTORY PRE-CONDITIONS TO SUIT

18. Plaintiff has complied with the statutory pre-conditions to suit, including the timely filing of a Notice of Claim with the Comptroller of the City of New York, and his appearance at a 50-h hearing, prior to the commencement of the action.

19. The Comptroller of City of New York has wholly neglected and refused to make an adjustment or payment of claim for more than thirty days after its presentation.

20. This action was commenced within one year and ninety days after the cause of action accrued.

FACTS

21. On April 6, 2018, at approximately 5:45 P.M., Mr. Johnson, was lawfully standing outside his motor vehicle, which was parked on Rockaway Parkway near its intersection with Glenwood Road, when he was approached by Defendant Shervis, who at the time worked out of the NYPD's 69th Precinct, located at 9720 Foster Avenue in the County of Kings, City and State of New York.

22. Defendant Shervis directed Defendant Wilson to arrest Mr. Johnson without warrant, probable or legal cause, excuse, justification, or consent.

23. Mr. Johnson was then transported to the 69th Precinct.

24. Defendant Wilson walked Mr. Johnson to the front desk of the 69th Precinct where, upon request, Mr. Johnson began to provide his pedigree information.

25. While Mr. Johnson was providing his pedigree information, Defendant Shervis directed Defendant Hawk to take over for Defendant Wilson.

26. Defendant Hawk, together with his partner, Defendant Feratovic, brought Mr. Johnson to the cell area of the 69th Precinct for processing; Mr. Johnson was at all times compliant with the requests of the Defendants, including Defendants Hawk and Feratovic.

27. Defendants Hawk and Feratovic, however, were acting aggressively toward Mr. Johnson, forcibly removing articles of Mr. Johnson's clothing from Mr. Johnson's body, and forcibly thrusting Mr. Johnson onto a chair outside a holding cell.

28. Mr. Johnson attempted to show Defendants Hawk and Feratovic a laceration on Mr. Johnson's leg that Mr. Johnson had sustained prior to his arrest.

29. Defendants Hawk and Feratovic, however, had no interest in Mr. Johnson's injury and forcibly threw Mr. Johnson onto the ground and began punching and kicking Mr. Johnson.

30. More police officers entered the holding area and joined in the assault of Mr. Johnson,

including Defendants Goldin, Shervis, Wilson, and Gergis.

31. This assault and brazen display of excessive force was caught on camera, which video was revealed during Mr. Johnson's criminal trial.

32. This assault occurred adjacent to a holding cell, which was at the time occupied by another inmate.

33. Mr. Johnson, who now feared for his life, began to scream out his pedigree information to the individual within the holding cell, pleading with the individual to remember Mr. Johnson's name.

34. Defendant Hawk, in an apparent attempt to prevent Mr. Johnson from communicating with the individual within the holding cell, placed his hand over Mr. Johnson's mouth and nose, effectively preventing Mr. Johnson from breathing.

35. At this point, more officers had joined in the fray and continued to assault Mr. Johnson as he lay on the floor.

36. Mr. Johnson began to shake his head in an effort to remove Defendant Hawk's hand from Mr. Johnson's mouth; as a result, Defendant Hawk's finger slipped into Mr. Johnson's mouth.

37. Mr. Johnson, still fearing for his life, bit down hard, severing the tip of Defendant Hawk's finger.

38. The Defendants continued to assault Mr. Johnson.

39. Mr. Johnson was eventually taken to Brookdale Hospital via ambulance.

40. As a result of the assault, Mr. Johnson suffered a fractured finger and numerous lacerations to his wrist.

41. Mr. Johnson was eventually charged with Criminal Mischief in the Second, Third, and Fourth degree, and menacing in the Third degree, all related to his initial arrest at Rockaway

Parkway and Glenwood Road.

42. Mr. Johnson was also charged with Assault in the First Degree, Assault on a Police Officer, Assault in the Second Degree (two counts), Assault in the Third Degree, and obstructing governmental administration in the Second Degree. Mr. Johnson was indicted and bail was set at \$150,000.00 and was never reduced during the pendency of the criminal prosecution against Mr. Johnson.

43. Mr. Johnson went to trial before the Hon. Jane C. Tully and was found not guilty on all charges.

44. On November 26, 2018, Mr. Johnson was released after having suffered through 234 consecutive days of incarceration.

45. As such, Mr. Johnson's claim for false arrest, dating to his arrest and imprisonment on April 6, 2018, are brought timely as the cause of action did not accrue until Mr. Johnson was released from custody.

46. Defendants engaged in misconduct, failed to adhere to procedure, rules and regulations, and fabricated and failed to turn over evidence during the course of the criminal prosecution against Mr. Johnson.

47. Prior to April 6, 2018, Defendant City was aware of, tolerated, and through its deliberate indifference, sanctioned and encouraged its police officers unlawfully arresting and using excessive force against persons.

48. Prior to April 6, 2018, Defendant City was aware of, tolerated, and through its deliberate indifference, sanctioned and encouraged its police officers fabricating and failing to turn over evidence during criminal investigations and prosecutions.

49. Those individual Defendants who did not touch Mr. Johnson failed to protect him from the

unlawful arrest, deprivation of due process, assaults, batteries, and excessive force used against him by those individual Defendants who did touch Mr. Johnson.

50. As a consequence of Defendants' violations of the rights secured to Mr. Johnson under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, Mr. Johnson served 234 days of imprisonment on Riker's Island.

51. Thus, by reason of the aforesaid constitutional deprivation perpetrated by Defendants herein, Mr. Johnson was caused to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

**FIRST CAUSE OF ACTION THROUGH 42 U.S.C. § 1983: DEPRIVATION OF RIGHTS
SECURED UNDER THE CONSTITUTION OF THE UNITED STATES**

52. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

53. Defendants, under color of state and/or local law, subjected Mr. Johnson to the foregoing acts without due process of law and in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through 42 U.S.C. § 1983, thereby depriving MR. JOHNSON of his rights, privileges and immunities, including, without limitation, deprivation of the following constitutional rights:

- a. Freedom from unreasonable seizures of their person;
- b. Freedom from arrest without probable cause;
- c. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which Mr. Johnson was aware and did not consent;
- d. Freedom from the lodging of false charges against him by police officers;
- e. Freedom from having police officers fabricate evidence against him;

- f. Freedom from having police officers refuse to or fail to turn over all evidence during a criminal investigation and prosecution;
- g. Freedom from the falsification of documents;
- h. Freedom from the falsification of official records;
- i. Freedom from excess force;
- j. Freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in Mr. Johnson's favor, in contravention of the Fourth Amendment's guarantee of freedom from unreasonable seizures; the Fifth Amendment's guarantee that no individual's freedom shall be deprived without due process of law; and the Fourteenth Amendment's guarantee of substantive and procedural due process;
- k. The enjoyment of equal protection, privileges and immunities under the laws.

54. Mr. Johnson alleges that Defendants City, Feratovic, Hawk, Shervis, Goldin, Wilson and Odessa fabricated evidence and withheld evidence as it relates to the incident within the 69th precinct that occurred on April 6, 2018, which constituted violations of Mr. Johnson's constitutional rights under the Fourth, Fifth, Sixth and Fourteenth Amendments. Mr. Johnson alleges that this conduct was intentional and malicious.

55. Mr. Johnson alleges that all Defendants failed to follow proper policies and protocols as it relates to the incident within the 69th precinct on April 6, 2018, which constituted violations of Mr. Johnson's constitutional rights under the Fourth, Fifth, Sixth and Fourteenth Amendments. Mr. Johnson alleges that this conduct was intentional and malicious.

56. Mr. Johnson alleges that Defendants City, Shervis, Odessa, Pons, Spera, and Anderson failed to intervene as it relates to the incident within the 69th precinct on April 6, 2018, which

constituted violations of Mr. Johnson's constitutional rights under the Fourth, Fifth, Sixth and Fourteenth Amendments. Mr. Johnson alleges that this conduct was intentional and malicious.

57. On April 6, 2018, Mr. Johnson was falsely arrested, falsely seized and falsely detained, deprived of his freedom, unlawfully imprisoned and subjected to the use of excessive force by all Defendants.

58. All acts by the Defendants were committed under color of law.

59. Accordingly, the acts of the Defendants were violation of Mr. Johnson's civil and constitutional rights guaranteed under the United States Constitution, including its Fourth, Fifth and Fourteenth Amendments, through 42 U.S.C. § 1983.

60. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

**SECOND CAUSE OF ACTION THROUGH 42 U.S.C. § 1983: SUPERVISORY
LIABILITY FOR DEPRIVATION OF RIGHTS SECURED UNDER THE
CONSTITUTION OF THE UNITED STATES**

61. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

62. By failing to remedy the wrongs committed by his or her subordinates, in failing to properly train, screen, supervise, or discipline his or her subordinates, and by personally participating in the constitutional torts described above, supervisory officers Defendants Shervis, Odessa, Pons, and Anderson, caused damage and injury in violation of Mr. Johnson's rights guaranteed under the United States Constitution, including its Fourth, Fifth and Fourteenth Amendments, through 42 U.S.C. § 1983.

63. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

THIRD CAUSE OF ACTION THROUGH 42 U.S.C. § 1983: EXCESSIVE FORCE

64. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

65. The conduct and actions of Defendants acting in concert and under color of law in authorizing, directing and/or causing injuries to Mr. Johnson by beating him were excessive, unreasonable and unwarranted.

66. Defendants' actions were intentional, willful, malicious, egregious, negligent, unconscionable and unprovoked.

67. These acts were done without justification or reason and were committed in violation of Mr. Johnson's rights as guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

68. As a result of Defendants' excessive force and brutality, Mr. Johnson suffered broken bones, laceration, substantial pain and suffering and trauma.

69. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

**FOURTH CAUSE OF ACTION THROUGH 42 U.S.C. § 1983: MONELL CLAIM
AGAINST DEFENDANT CITY FOR DEPRIVATION OF RIGHTS SECURED UNDER
THE CONSTITUTION OF THE UNITED STATES**

70. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

71. All of the acts by the named Defendant police officers described above were carried out pursuant to overlapping policies and practices of Defendant City which were in existence at the time of the conduct alleged herein and were engaged in with the fully knowledge, consent, and cooperation and under the supervisory authority of the Defendant City and its agency, the NYPD.

72. Defendant City and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police Defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

73. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to *de facto* customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

74. The aforementioned *de facto* customs, practices, procedures and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Racially profiling minority individuals, and more specifically, African-American individuals, like Mr. Johnson;
- b. Falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony, in order to:
 - i. Cover-up, hide, mask, or justify unconstitutional seizures of persons and unconstitutional uses of excessive force against persons; and/or
 - ii. Meet productivity goals (arrest quotas).

75. **Racial Profiling**. The existence of the aforesaid unconstitutional custom, practice,

procedure and rule of the CITY and the NYPD as to racial profiling of minority individuals by NYPD Officers is evidenced by the following:

- a. According to a study conducted by the Center for Constitutional Rights, from 2005 through 2008, approximately eighty (80) percent of all stops conducted by NYPD Officers were of Blacks and Latinos, which comprise merely twenty-five (25) and twenty-eight (28) percent of New York City's total population.ⁱ Only ten (10) percent of stops conducted by NYPD Officers were of Whites, which comprise forty-four (44) percent of New York City's total population.ⁱⁱ

The Center concluded that:

Data provided by the NYPD plainly demonstrate Black and Latino New Yorkers have a greater likelihood of being stopped-and-frisked by NYPD officers at a rate significantly disproportionate to that of White New Yorkers. That NYPD officers use physical force during stops of Blacks and Latinos at an exceedingly disproportionate rate compared to Whites who are stopped, and that this disparity exists despite corresponding rates of arrest and weapons or contraband yield across racial lines, further supports claims that the NYPD is engaged in racially biased stop-and-frisk practices.ⁱⁱⁱ

- b. The above findings are confirmed by reports made by numerous Black NYPD Officers, who state that, when off-duty and not in uniform, Black Police Officers are victims of the same racial profiling to which New York's minorities are frequently subjected. As explained in an article published by Reuters:

Reuters interviewed 25 African-American male officers on the NYPD, 15 of whom are retired and 10 of whom are still serving. All but one said that, when off duty and out of uniform, they had been victims of racial profiling, which refers to using race or ethnicity as grounds for suspecting someone of having committed a crime.

The officers said this included being pulled over for no reason, having their heads slammed against their cars, getting guns brandished in their faces, being thrown into prison vans and experiencing stop and frisks while shopping. The majority of the officers said they had been pulled over multiple times while driving. Five had guns pulled on them.^{iv}

76. **Falsely Swearing Out Criminal Complaints/Perjury.** According to the Mollen Commission, police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. According to the Commission:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.^v

[...]

What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justified, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.”^{vi}

The Commission’s report was echoed by the Honorable District Court Judge Weinstein, writing for the Eastern District of New York in *Colon v. City of New York*, Nos.: 09-CV-8, 09-CV-9, 2009 WL 4263362 (E.D.N.Y.). In an Order dated November 25, 2009, which denied the CITY’s motion to dismiss on *Iqbal/Twombly* grounds, wherein the police officers at issue were fired and prosecuted for falsifying evidence in

a purported buy-and-bust operation, Judge Weinstein wrote:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer[s] of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York*, Nos.: 09-CV-8, 09-CV-9, 2009 WL 4263362 *2 (E.D.N.Y. 2009).

Former Police Commissioner RAYMOND KELLY, upon hearing of Judge Weinstein’s Order, particularly the language regarding the frequency with which Police Officers lie under oath, acknowledged that “When it happens, it’s not for personal gain. It’s more for convenience.”

vii

77. The existence of the aforesaid unconstitutional custom, practice, procedure and rule of the CITY and the NYPD as to falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony in order to a) cover up, hide, mask or justify unconstitutional action; and/or b) to meet productivity goals (arrest quotas), may be inferred from repeated occurrences of similar wrongful conduct, which is documented by the following:

a. **Cover Up, Hide, Mask or Justify Unconstitutional Action.**

- i. *Stevenson v. Oldson Ajesulas*, 14-CV-3144 (E.D.N.Y.) (P.O. OLDSON AJESULAS is sued in his individual and official capacities for the false arrest and false imprisonment of Plaintiff therein, and for providing false information to the Queens County District Attorney’s Office in an effort to institute a malicious prosecution against the Plaintiff therein—

it should be noted that P.O. OLDSON AJESULAS is also a named Defendant in the instant action);

- ii. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.) (officer who purposefully swore out a false complaint and used excessive force is convicted of falsifying police records);
- iii. *Taylor-Mickens v. City of New York*, 09 Civ. 7923 (RWS) (S.D.N.Y.) (police officers at the 24th Precinct issue four summonses to a woman in retaliation for her lodging a complaint with the Civilian Complaint Review Board at the precinct);
- iv. *Callaghan v. City of New York*, 07 Civ. 9611 (PKC) (S.D.N.Y.) (officers accused of falsifying evidence and retaliatory arrests of bicyclists engaged in expressive conduct, *to wit*, riding in Critical Mass bicycle rides after the 2004 Republican National Convention);^{viii}
- v. *Kaufman v. City of New York*, No.: 87 Civ. 4492 (RO), 1992 WL 247039 (S.D.N.Y. 1992) (bystander arrested for observing an unlawful arrest in public, requesting the officer's badge number, and telling the officer that he planned to file a report about the arrest).
- vi. On August 26, 2013, The Bronx District Attorney's Office issued a press release indicating that New York City Police Officer Michael Ackermann was charged by a grand jury with Falsifying Business Records in the First and Second Degrees, Tampering with Public Records in the First and Second Degrees, Offering a False Instrument for Filing in the First and Second Degrees, Official Misconduct, and Making a Punishable False Written Statement. The charges against Officer Ackermann stemmed from his August 4, 2012 arrest of a New York Times photographer. Officer Ackermann, in justifying the arrest, indicated that the photographer flashed his camera in Officer Ackermann's face while Officer Ackermann attempted to arrest another individual. However, an investigation into the incident determined that Officer Ackerman's story was a fabrication, as the camera used by the photographer did not have a flash device.

vii. In early 2010, the CITY settled a civil rights lawsuit, wherein NYPD Officer Sean Spencer falsely arrested and accused a 41-year old woman of prostitution, for \$35,000. The CITY's attorney in the lawsuit admitted that "Officer Spencer falsely reported to the assistant district attorney that he saw [the plaintiff] beckon to three male passersby and that he was aware that plaintiff was previously arrested for [prostitution] when the plaintiff had never been arrested for this offense."^{ix}

b. **Meet productivity goals (arrest quotas).**

- i. Former NYPD narcotics Detective STEPHEN ANDERSON, testifying during the corruption trial of Brooklyn South narcotics Detective Jason Arbeeney, stated in Brooklyn Supreme Court that it was common practice within the NYPD to fabricate drug charges against innocent people in order to meet arrest quotas. Said Detective ANDERSON: "As a detective, you still have a number to reach while you are in the narcotics division."^x
- ii. *Floyd v. City of New York*, No.: 08 Civ. 1034 (SAS), 959 F.Supp.2d 540, 602 (S.D.N.Y. 2013) (Judge Shira A. Schiendlin stated that "imposing numerical performance goals for enforcement activities, without providing effective safeguards to ensure the activities are legally justified, could result in an officer taking enforcement action for the purpose of meeting a performance goal rather than because a violation of the law has occurred.")
- iii. *Bryant v. City of New York*, Index No.: 22011/2007 (Sup. Ct., Kings Co.) (jury declares that NYPD officers acted pursuant to a City policy regarding the number of arrests officers were expected to make that violated plaintiffs constitutional rights and contributed to her arrest);^{xi}
- iv. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.) (officers fabricated evidence and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- v. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.)

- (same);
- vi. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.) (same);
- vii. *Richardson v. City of New York*, No.: 02-CV-3651 (JG), 2006 WL 2792768 (E.D.N.Y. 2006) (officers fabricated evidence, including knowingly false sworn complaints, and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- viii. *Taylor v. City of New York*, 01-CV-5750 (ILG) (MDG) (E.D.N.Y.) (same as *Richardson*, paragraph O above, except without the excessive force; judge at the criminal trial acquitting Mr. Taylor noted, on the record, that he had “significant doubt” about the truthfulness of the officers who testified);
- ix. In December of 2009, two (2) officers from the 81st Precinct in Brooklyn arrested and falsely swore out charges against an undercover officer from the Internal Affairs Bureau. As explained in an article in the New York Post:

The officers were snared in a sting by Internal Affairs in December when they were told to keep an eye out for people selling untaxed cigarettes in their precinct.

Sometime later, they saw a man hanging out on a corner in the neighborhood and found that he was carrying packs of knock-off smokes.

[Sgt. Raymond] Stukes, 45, and [Officer Hector] Tirado, 30, cuffed him, then claimed that they had seen him selling the bogus butts to two people, according to sources.

Little did the hapless cops know that the man in their custody was an undercover corruption investigator and that the whole incident was caught on video.

To complete the ruse, the undercover cop was processed at the station so as to not tip off Stukes and Tirado about the sting . . .

[P]olice sources said [this action] stem[s] from precinct commanders caving to the pressure of top brass to make themselves look better.

“There’s pressure on the cops from the bosses and they’re getting pressured from headquarters,” a police source told The Post.^{xii} These officers were indicted for felony perjury, filing a false report and filing a false instrument.^{xiii}

- x. According to the Police Reform Organizing Project, in its short-report titled *Working Towards a More Safe and Fair City: Abolishing Quotas and Involving Communities*, “Promotion or job security in the [NYPD] largely depends on the number of arrests made and tickets issued.” The report continues:

The NYPD has continuously denied the existence of quotas and asserts that it relies only on a set of ‘productivity goals’. These ‘productivity goals’ are a euphemism for a “quota system”. In 2010, the New York State Legislature enacted the Quota Law, which outlawed the use of a quota system for summonses, tickets and stop-and-frisk encounters and prohibited the use of quotas for performance evaluations. Yet, the NYPD leadership proceeded with a numbers-focused evaluation process of officers.

[...]

To meet this quota requirement many officers engage in indiscriminate ticketing, arrests, stops and other harassing techniques . . . The easiest people for officers to target to reach their quota requirement are from the most vulnerable communities in New York City: low-income African-American and Latinos, Muslims, sex workers, street vendors, people with mental illness, homeless people and LGBTQ (Lesbian, Gay, Bi-sexual, Transgender and Queer) individuals.^{xiv}

78. Furthermore, there is a widespread, egregious custom and practice within the NYPD of retaliation against Officers who speak out against the aforesaid unconstitutional customs of racially profiling minorities and falsely swearing out criminal complaints, which is documented by the following:

- a. *Schoolcraft v. City of New York*, No. 10 Civ. 6005 (RWS), 2011 WL 175863 (S.D.N.Y. 2011) (police officer who expose a precinct's policies and practices of, *inter alia*, falsifying evidence and suborning perjury alleges he was arrested and committed to a psychiatric facility in retaliation for exposing said policies and practices to the press);
- b. *Carmody v. City of New York*, No.: 05 Civ. 8084 (HB), 2006 WL 3317026 (S.D.N.Y. 2006) (police officer alleges that he was terminated for cooperating with another officer's claims of a hostile work environment);
- c. *Powers v. City of New York*, No.: 04-CV-02246 (NGG), 2007 WL 1026407 (S.D.N.Y. 2007) (police officer alleges unlawful retaliation by other police officers after testifying about corruption within the NYPD);
- d. *Nonnemann v. City of New York*, No.: 02 Civ. 10131 (JSR) (AJP), 2004 WL 1119648 (S.D.N.Y. 2004) (former NYPD lieutenant alleging retaliatory demotion and early retirement after reporting a fellow officer to IAB and CCRB for the officer's unjustified, racially-motivated stop-and-frisk of a group of Hispanic youth);
- e. *Barry v. New York City Police Department*, No.: 01 Civ. 10627 *2 (CBM), 2004 WL 758299 (S.D.N.Y. 2004) (triable issue of fact where NYPD sergeant alleged retaliatory demotion and disciplinary charges in response to sergeant's allegations of corruption within her unit and alleged that the NYPD had an "unwritten but pervasive custom of punishing officers who speak out about police misconduct and encouraging, if not facilitating, silence among officers");
- f. *Walton v. Safir*, No.: 99 Civ. 4430 (AKH), 122 F.Supp.2d 466 (S.D.N.Y. 2000) (factual findings after trial that a 12-year veteran of NYPD was terminated in retaliation for criticizing the racially-motivated policies of the NYPD's Street

Crime Unit and for alleging that such policies led to the NYPD shooting death of Amadou Diallo);

- g. *White-Ruiz v. City of New York*, No.: 93 Civ. 7233 (DLC) (MHD), 983 F. Supp. 365, 380 (S.D.N.Y. 1997) (holding that the NYPD had an “unwritten policy or practice of encouraging or at least tolerating a pattern of harassment directed at officers who exposed instances of police corruption”);
- h. *Ariza v. City of New York*, No.: CV-93-5287, 1996 WL 118535 (E.D.N.Y.) (police officer alleges retaliatory duty assignments and harassment in response to his allegations about a racially-discriminatory workplace; on motion for summary judgment, the Court held that the police officer had established proof of both a widespread usage of a policy to retaliate against police officers who expose police misconduct and a failure to train in the police department);

79. Mr. Johnson alleges that the following systemic flaws exist in Defendant City’s police misconduct review process:

- a. Preparing reports regarding investigations of incidents as routing point-by-point justification of the police officers’ actions regardless of whether such actions were justified;
- b. Police officers investigating incidents systematically fail to credit testimony by non-police officer witnesses and uncritically rely on reports by police officers involved in the incident;
- c. Police officers investigating incidents fail to include in their reports relevant factual information that would tend to contradict the statements of the police officers involved;
- d. Police officers fail to communicate, properly respond to the scene and fail to provide proper supervision at the scene of incidents;
- e. Create and manufacture false testimony and evidence;

f. Police officers overlook false and misleading statements made by police personnel.

80. That on April 6, 2018, the individual Defendants assaulted Mr. Johnson.

81. This assault was caught on video.

82. That in order to cover up their unconstitutional use of excessive force against Mr. Johnson, the individual Defendants fabricated evidence, provided false sworn testimony, failed to turnover relevant evidence, and participated in and instigated the prosecution of Mr. Johnson.

83. That as a consequence of such fabrication of evidence, Mr. Johnson was charged with numerous crimes involving assault on a police officer, irreparably harming Mr. Johnson's reputation in the community, and causing him to be held on \$150,000 bail.

84. That Mr. Johnson was unable to pay his bail and was caused to suffer through 234 days of imprisonment during the pendency of his trial.

85. That during trial, video revealed that Mr. Johnson was not an aggressor during the incident of April 6, 2018.

86. That Mr. Johnson was properly acquitted at trial.

87. Mr. Johnson was arrested and prosecuted as a result and consequence of the above-described unlawful *de facto* policies and/or well-settled and widespread customs.

88. The existence of the above-described unlawful *de facto* policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and the City.

89. The actions of the individual police Defendants resulted from and were taken pursuant to the above-mentioned *de facto* policies and/or well-settled and widespread customs and practices of the City, which are implemented by members of the NYPD, of engaging in systematic and

ubiquitous racial-profiling, as well as perjury, both oral and written, to cover-up federal law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates, or to meet arrest quotas. They do so with the knowledge and approval of their supervisors, and commanders who all: (i) tacitly accept and encourage a code of silence wherein police officers refuse to report other officers' misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements to the CCRB and the Internal Affairs Bureau ("IAB"), and in public statements designed to cover for and/or falsely exonerate accused police officers, and to meet arrest quotas; and (ii) encourage and, in the absence of video evidence blatantly exposing the officers' perjury, fail to discipline officers for testifying and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians, as was done to Mr. Johnson, in order to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates against those civilians, and to meet arrest quotas.

90. All of the foregoing acts by Defendants deprived Mr. Johnson of federally protected rights, including, but not limited to:

- a. Freedom from unreasonable seizures of their person;
- b. Freedom from arrest without probable cause;
- c. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which Mr. Johnson was aware and did not consent;
- d. Freedom from the lodging of false charges against him by police officers;
- e. Freedom from having police officers fabricate evidence against him;
- f. Freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in

Mr. Johnson's favor, in contravention of the Fourth Amendment's guarantee of freedom from unreasonable seizures; the Fifth Amendment's guarantee that no individual's freedom shall be deprived without due process of law; and the Fourteenth Amendment's guarantee of substantive and procedural due process;

g. The enjoyment of equal protection, privileges and immunities under the laws.

91. Defendant City knew or should have known that the acts alleged herein would deprive Mr. Johnson of his rights, in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

92. Defendant City is directly liable and responsible for the acts of the individual police Defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulation of the City and NYPD, and to require compliance with the Constitution and laws of the United States.

93. Despite knowledge of such unlawful *de facto* policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the City have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

94. The aforementioned policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the extensive

police misconduct detailed herein. Specifically, pursuant to the aforementioned policies, practices and/or customs, the Defendant Officers felt empowered to assault Mr. Johnson, and those who did not touch Mr. Johnson failed to intervene in such assault. These officers felt further empowered to then fabricate evidence, withhold evidence, all in an effort to cover up their unconstitutional use of excessive force against Mr. Johnson.

95. Mr. Johnson's injuries were a direct and proximate result of Defendant City and the NYPD's wrongful *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of Defendant City and the NYPD to properly supervise, train and discipline their police officers.

96. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of Mr. Johnson's constitutional rights.

97. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused MR. JOHNSON to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

**FIFTH CAUSE OF ACTION THROUGH TO 42 U.S.C. § 1983: FALSE ARREST IN
CONTRAVENTION OF THE CONSTITUTION OF THE UNITED STATES**

98. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

99. That the individual Defendants had neither valid evidence for the arrest of Mr. Johnson, nor proper warrant, probable or legal cause, excuse or justification to seize and detain him.

100. That in detaining Mr. Johnson without a fair and reliable determination of probable cause, Defendant City abused its power and authority as a policymaker of the NYPD under the color of

State and/or local law.

101. It is alleged that City, via their agents, servants and employees routinely charged persons with crimes they did not commit.

102. Mr. Johnson was but one of those persons.

103. As a result of the aforesaid conduct by Defendants, Mr. Johnson was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

104. That in detaining Mr. Johnson, Defendant Officers acted in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

105. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused MR. JOHNSON to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

SIXTH CAUSE OF ACTION THROUGH 42 U.S.C. § 1983:
MALICIOUS ABUSE OF PROCESS IN CONTRAVENTION OF THE CONSTITUTION
OF THE UNITED STATES

106. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

107. Defendants, acting under color of state law, issued legal process to place Mr. Johnson under arrest, and to secure a conviction based on that arrest.

108. Defendants arrested Mr. Johnson and falsely swore in the Criminal Complaint, in order to obtain a collateral objective outside the legitimate ends of the legal process; namely, Defendants arrested Mr. Johnson in order to cover-up for their unconstitutional assault of his person, and in order to meet arrest quotas; Defendants falsely swore in the Criminal Complaint in an attempt to

further cover-up his unconstitutional assault, as well as to meet arrest quotas.

109. Defendants acted with the intent to do harm to Mr. Johnson without excuse or justification.

110. This malicious abuse of process caused Mr. Johnson to incur special damages in the form of legal fees incurred.

111. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

**SEVENTH CAUSE OF ACTION THROUGH 42 U.S.C. § 1983: MALICIOUS
PROSECUTION IN CONTRAVENTION OF THE CONSTITUTION OF THE UNITED
STATES**

112. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

113. Defendants, acting under color of state law, misrepresented and falsified evidence before the Kings County District Attorney. Defendants did not make a complete and full statement of facts to the Kings County District Attorney.

114. Defendants, pursuant to *de facto* policies and/or well-settled and widespread customs and practices of Defendant City and its agency NYPD, falsely swore in the criminal complaint that Mr. Johnson acted aggressively toward Defendant Hawk and that Defendant Hawk was justified in assaulting Mr. Johnson.

115. Defendants lacked probable cause to initiate criminal proceedings against Mr. Johnson.

116. Defendants acted with malice in initiating criminal proceedings against Mr. Johnson.

117. Defendants were directly and actively involved in the continuation of criminal proceedings against Mr. Johnson.

118. Defendants lacked probable cause to continue criminal proceedings against Mr. Johnson.
119. Defendants acted with malice in continuing criminal proceedings against Mr. Johnson.
120. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.
121. Notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Mr. Johnson's favor on November 26, 2018, when Mr. Johnson was acquitted at trial.
122. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

EIGHTH CAUSE OF ACTION
DENIAL OF FAIR TRIAL IN CONTRAVENTION OF THE CONSTITUTION OF THE
UNITED STATES

123. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
124. By fabricating evidence, Defendants violated Mr. Johnson's constitutional right to a fair trial.
125. Defendants were aware or should have been aware of the falsity of the information used to prosecute Mr. Johnson.
126. Mr. Johnson was remanded to Riker's Island Correctional Facility for allegedly assaulting a police officer.
127. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr.

Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

**NINTH CAUSE OF ACTION PURSUANT TO NEW YORK COMMON LAW: FALSE
ARREST**

128. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

129. On April 6, 2018, Defendants falsely arrested Mr. Johnson.

130. At all times relevant hereto, Mr. Johnson had not committed or attempted to commit any illegal acts(s).

131. Mr. Johnson had not given defendants probable cause to believe that he had committed any illegal acts.

132. The aforesaid arrest and imprisonment was malicious, unlawful, and not based upon a proper warrant, probable cause or legal cause, excuse or justification to seize the person and/or property of the plaintiff, and was therefore an unlawful arrest and detainment.

133. Mr. Johnson did not consent to the confinement.

134. Defendants acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of Mr. Johnson.

135. At the time of his unlawful arrest and imprisonment, Mr. Johnson had not committed or attempted to commit any illegal acts.

136. At the time of Mr. Johnson's unlawful arrest, detainment and/or imprisonment, defendants knew or should have known, through exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment were false and without probable cause.

137. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr.

Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

TENTH CAUSE OF ACTION PURSUANT TO NEW YORK COMMON LAW:
MALICIOUS PROSECUTION

138. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

139. After Mr. Johnson's unlawful arrest, Defendants, without probable cause and with actual malice, caused a criminal action to be commenced against Mr. Johnson.

140. On November 26, 2018, Mr. Johnson was acquitted of all charges related to the incidents of April 6, 2018.

141. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

PUNITIVE DAMAGES

142. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

143. The foregoing acts were done recklessly, intentionally, wantonly and with gross indifference to the rights of Mr. Johnson, thereby entitling Mr. Johnson to punitive and exemplary damages.

ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

144. Mr. Johnson incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

145. The foregoing events constitute violations of Mr. Johnson's statutory and constitutional

rights, thereby entitling him to attorney's fees, costs and disbursements as permitted by 28 U.S.C. § 1983.

INJURY AND DAMAGES

146. As a result of all of the foregoing, defendants have become liable to Mr. Johnson in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

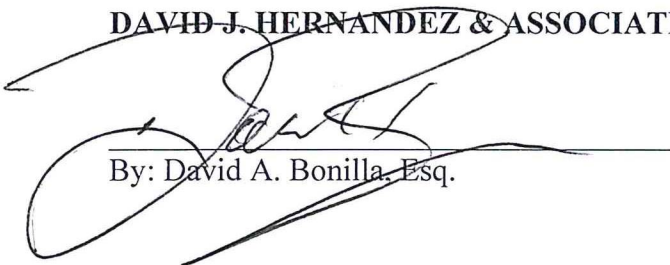
147. Defendants' deprivations of Mr. Johnson's constitutional rights, secured to Mr. Johnson by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, caused Mr. Johnson to suffer and endure loss of liberty, mental anguish, emotional distress, shame, humiliation, indignity and damage to reputation.

WHEREFORE, AINSLEY JOHNSON respectfully requests that judgment be entered:

- a. Awarding AINSLEY JOHNSON compensatory damages in a full and fair sum to be determined by a jury;
- b. Awarding AINSLEY JOHNSON punitive damages in an amount to be determined by a jury;
- c. Awarding AINSLEY JOHNSON interest from April 6, 2018;
- d. Awarding AINSLEY JOHNSON reasonable attorney's fees pursuant to 42 U.S.C. § 1988; and
- e. Granting such other and further relief that this Court may deem just and proper.

Dated: Brooklyn, New York
February 23, 2020

DAVID J. HERNANDEZ & ASSOCIATES


By: David A. Bonilla, Esq.

Attorneys for Plaintiff
AINSLEY JOHNSON
26 Court Street – Suite 2707
Brooklyn, NY 11242
T: (718) 522-0009

ⁱ Center for Constitutional Rights, *Racial Disparity in NYPD Stop-and-Frisks*, January 15, 2009, available at, http://ccrjustice.org/sites/default/files/assets/Report-CCR-NYPD-Stop-and-Frisk_3.pdf.

ⁱⁱ *Id.*

ⁱⁱⁱ *Id.*

^{iv} Michelle Conlin, *Off duty, black cops in New York feel threat from fellow police*, Reuters, December 23, 2014, available at, <http://www.reuters.com/article/2014/12/23/us-usa-police-nypd-race-insight-idUSKBN0K11EV20141223>.

^v Mollen Commission Report, p. 36.

^{vi} *Id.* at pp. 40-41.

^{vii} Oren Yaniv and John Marzulli, *Kelly Shrugs Off Judge Who Slammed Cops*, New York Daily News, December 2, 2009, available at http://www.nydailynews.com/news/ny_crime/2009/12/02/2009-12-02_kelly_shrugs_off_judge_who_rips_lying_cops.html.

^{viii} For a description of this case and the nearly \$1 million settlement, see, Cate Doty, *Bike Riders in New York Win Settlement*, N.Y. Times, October 18, 2010, available at http://www.nytimes.com/2010/10/19/nyregion/19critical.html?_r=1.

^{ix} John Marzulli, *City shells out \$35G to grandmother, Monica Gonzalez, busted as hooker*, New York Daily News, January 7, 2010, available at http://www.nydailynews.com/ny_local/2010/01/08/2010-01-08_city_shells_out_35g_to_granny_busted_as_hooker.html.

^x John Marzulli, *We fabricated drug charges against innocent people to meet arrest quotas, former detective testifies*, New York Daily News, October 13, 2011, available at <http://www.nydailynews.com/news/crime/fabricated-drug-charges-innocent-people-meet-arrest-quotas-detective-testifies-article-1.963021>.

^{xi} This case was settled during trial; for information on the settlement, see, Oren Yaniv, *Court rules that cops do use quotas, woman injured in 2006 arrest settles for \$75,000*, N.Y. Daily News, Feb. 19, 2011, available at http://www.nydailynews.com/news/ny_crime/2011/02/19/2011-02-19_court_rules_that_cops_do_use_quotas_woman_injured_in_2006_arrest_settles_for_750.html

^{xii} Larry Celona and Tim Perone, *Cops Sting Cops*, New York Post, July 30, 2010, available at http://www.nypost.com/p/news/local/brooklyn/cops_sting_cops_lyltuTeLdhKWtruJZYsdl.

^{xiii} John Marzulli, *Brooklyn cops charged with barding into sting operation, arresting a fellow officer on bogus charges*, New York Daily News, July 30, 2010, available at http://www.nydailynews.com/ny_local/2010/07/30/2010-07-30_brooklyn_cops_charged_with_barging_into_sting_operation_arresting_a_fellow_offic.html.

^{xiv} Police Reform Organizing Project, *Working Towards a More Safe and Fair City: Abolishing Quotas and Involving Communities*, September 2014, available at, https://gallery.mailchimp.com/f6b63e2555a5fd40610a66a67/files/Working_Towards_a_More_Safe_and_Fair_City.pdf.

Index No.:

Year:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

AINSLEY JOHNSON,

Plaintiff,

vs.

CITY OF NEW YORK, POLICE OFFICER HARIS FERATOVIC, SHIELD NO. 18161,
POLICE OFFICER MICHAEL HAWK, SHIELD NO. 1338, LIEUTENANT JOSEPH
SHERVIS, SHIELD NO. 1606, POLICE OFFICER GOLDIN, SHIELD NO. UNKNOWN,
POLICE OFFICER WILSON, SHIELD NO. UNKNOWN, SERGEANT LAUREN J. ODESSA,
SHIELD NO. UNKNOWN, POLICE OFFICER JOHN GERGIS, SHIELD NO. UNKNOWN,
SERGEANT ANTHONY PONS, SHIELD NO. UNKNOWN, DETECTIVE MICHAEL
SPERA, SHIELD NO. UNKNOWN, and CAPTAIN TERRELL ANDERSON, SHIELD NO.
UNKNOWN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DAVID J. HERNANDEZ & ASSOCIATES

Attorney for Plaintiff

AINSLEY JOHNSON

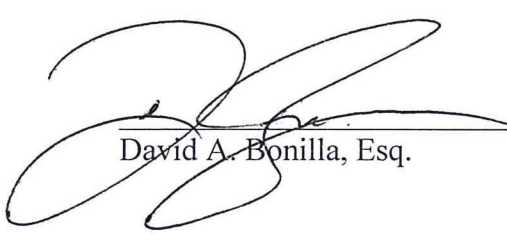
26 Court Street, Suite 2200

Brooklyn, New York 11242

T. (718) 522-0009

I, David A. Bonilla, Esq., certify that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the foregoing paper or the contentions therein are not frivolous as defined in subsection (c) of Section 130.01 of the Rules of the Chief Administrator of the Courts.

Dated: Brooklyn, New York
February 23, 2020


David A. Bonilla, Esq.